

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

RESPONDENT’S MOTION FOR CONFIDENTIAL TREATMENT

Respondent APS East Coast Inc (“APS”) by and through their attorneys Mills Black LLP, hereby move pursuant to the Federal Maritime Commission’s (the “Commission”) June 21, 2023 Initial Order and 5(b) of the Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of Respondent’s Sur-Reply.

Confidentiality is necessary because Respondent’s Sur-Reply contains references to, and discussion of, business information which Complainants have designated as confidential. Pursuant to Rule 5(b), Respondent will file both a confidential and public version of its Sur-Reply.

For the foregoing reasons, Respondent respectfully requests that the materials and documents which have been redacted in its Sur-Reply be kept confidential and not disclosed to the public.

Dated: August 30, 2024

Respectfully Submitted,

By: **/s/ Peter F. Black**

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Counsel to APS East Coast, Inc.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Hon. Alex M. Chintella - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
2. Gerald A. Morrissey III - *Counsel for Complainants*
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Dated: August 30, 2024

Respectfully Submitted,

By: **/s/ Peter F. Black**

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